

depositions and ordered them to occur. On October 30, 2024, Plaintiffs deposed the PMQ from Defendant River Valley on the topic of insurance. The deponent was Farooq Mir, an attorney retained by River Valley to testify in this capacity.

Plaintiffs take the position that Mr. Mir did not have sufficient knowledge to testify as the PMQ, that he was unable to respond to all questions and that additional documents are required to be produced. The Court has reviewed the deposition transcript of Mr. Mir and finds he had sufficient knowledge and expertise to qualify as the PMQ on this topic. Plaintiffs fail to provide sufficient evidence that Mr. Mir did not qualify as the PMQ or that there are additional documents to produce. The Court notes that should further discovery show that there was a more appropriate PMQ or that there were other documents including insurance policies that should have been produced, that Plaintiffs would have the right to file a new discovery motion to compel a new deposition, and for sanctions. Plaintiffs' requests to compel an additional deposition or the production of additional documents are denied without prejudice.

The motion is **DENIED** without prejudice. Defendant River Valley shall prepare an order consistent with the Court's final ruling.

J.G. WENTWORTH ORIGINATIONS, LLC VS. H.J., REAL PARTY-IN-INTEREST

Case Number: 25CV-0207601

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor Heather Justice has agreed to transfer 198 monthly payments of \$500.00 each, commencing on December 1, 2027 through and including May 1, 2044, in exchange for \$25,000.00.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that "Interested parties" means, with respect to a structured settlement agreement, the payee, the payee's attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee's death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is "fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Section 10137(a). Ms. Justice has presented evidence that she is experiencing financial hardship and intends to use the funds on expenses, travel, and home improvement and repairs. She has no minor children and no support obligations. Ms. Justice has not sought to transfer any other portion of this annuity previously. Her Declaration indicates that she understands the terms of the transaction, although she has not sought independent legal or financial advice. The annuity is from a 2022 personal injury settlement. It was not intended for future medical care or living expenses.

The Court finds the transfer to be fair, reasonable, and in Ms. Justice's best interest based on the factors set forth in Ins. Code § 10139.5(b). The Court expressly finds that each requirement set forth in Ins. Code § 10139.5(a) has been met. The Petition is **GRANTED**. Petitioner did not

provide a proposed Order as required by Local Rule of Court 5.17(D). Petitioner is to prepare the Order.

LVNV FUNDING, LLC VS. BELL

Case Number: 24CVG-01476

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff LVNV Funding, LLC seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Gladys Bell by mail on November 27, 2024. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: PENDLETON

Case Number: 25CV-0207393

Tentative Ruling on Petition for Change of Name: Petitioner Marie-Rose Lane Pendleton seeks to change her name to Harper Sigrid Grey Kunde. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal ("OSC") issued on April 24, 2025, pursuant to Gov't Code § 68608(b) to Plaintiff for failure to appear and failure to timely prosecute. No response to the OSC has been filed. At the most recent review hearing on April 21, 2025, Plaintiff requested a continuance to retain counsel. Nothing further has been filed. It appears that Plaintiff has abandoned this action. Absent an appearance and good cause shown, the Court intends to dismiss the matter for failure to timely prosecute. An appearance is necessary on today's calendar.